

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JEAN VADI,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. FRANK SICILIANO,
Tax ID No: 939464, Individually And In His Official
Capacity, P.O. DANIEL MACSWEENEY, Tax ID No:
930614, Individually And In His Official Capacity, P.O.
MARY CUNNINGHAM, Tax ID No: 954679, Individually
And In Her Official Capacity, P.O. JOHN MCANDREW, Tax
ID No: 906761, Individually And In His Official Capacity, and
“JOHN DOE” #1-10, Individually and in their Official
Capacities, (the name “John Doe” being fictitious, as the true
names are presently unknown),

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED TO ANSWER the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: June 22, 2017

Index No.**Plaintiff designates Bronx
County as the place of trial****SUMMONS****The basis of venue is
LOCATION OF
OCCURRENCE**

Jon L. Norinsberg
Attorney for Plaintiff
225 Broadway, Suite 2700
New York, New York 10007
(212) 227-5700

Defendant(s)' Address:

The City of New York	Sgt. Frank Siciliano
100 Church Street	306 W. 54 th Street
New York, NY 10007	New York, NY 10019

Daniel McSweeney	Mary Cunningham
Floyd Bennett Field, FL 3	2 East 169 th Street
Emergency Service	Bronx, NY 10452
Brooklyn, NY 11234	

“John Doe” #1-10
One Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JEAN VADI,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. FRANK SICILIANO, Tax ID No: 939464, Individually And In His Official Capacity, P.O. DANIEL MACSWEENEY, Tax ID No: 930614, Individually And In His Official Capacity, P.O. MARY CUNNINGHAM, Tax ID No: 954679, Individually And In Her Official Capacity, P.O. JOHN MCANDREW, Tax ID No: 906761, Individually And In His Official Capacity, and "JOHN DOE" #1-10, Individually and in their Official Capacities, (the name "John Doe" being fictitious, as the true names are presently unknown),

Plaintiff designates Bronx County as the place of trial. The basis of the venue as Bronx County is the place where the cause of action arose.

Defendants.
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Plaintiff, by his attorney, JON L. NORINSBERG, ESQ., complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

1. Plaintiff JEAN VADI was at all relevant times and still is a resident of the County of Bronx, in the City and State of New York.
2. Defendant CITY OF NEW YORK was at all relevant times and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, the defendant CITY OF NEW YORK maintained a police department whose members were employees of the defendant CITY OF NEW YORK.
4. Upon information and belief, and at all times hereinafter mentioned, defendants, P.O. FRANK SICILIANO, P.O. DANIEL MACSWEENEY, P.O. MARY CUNNINGHAM, and

“JOHN DOE” #1 through #10, (the name “John Doe” being fictitious, as the true names are presently unknown), were New York City Police Officers acting in the course of their employment with defendant CITY OF NEW YORK, in furtherance of the business of the defendant CITY OF NEW YORK, and under color of State law.

5. On or about August 25, 2014, at approximately 11:50 P.M., plaintiff was lawfully present at 166th Street and Teller Avenue, in the County of the Bronx, in the City and State of New York.

6. At the aforementioned time and place, a fight broke out amongst a group of people.

7. Plaintiff JEAN VADI attempted to break up the fight.

8. Plaintiff JEAN VADI was knocked unconscious while attempting to break up the fight.

9. Upon regaining consciousness, plaintiff JEAN VADI rose to his feet and proceeded to walk to his apartment building.

10. Suddenly, and without warning, plaintiff JEAN VADI was grabbed by defendant P.O. SICILIANO.

11. P.O. SICILIANO told plaintiff JEAN VADI he was not being arrested, and yet demanded that plaintiff JEAN VADI accompany him to the 44th Police Precinct.

12. Plaintiff JEAN VADI felt that he had no choice but to comply with the officer’s directive.

13. Upon arrival at the 44th Police Precinct, plaintiff JEAN VADI was questioned at length about a firearm.

14. At no time on August 25, 2014 did plaintiff JEAN VADI ever possess, touch, or have any knowledge about any firearm.

15. Nevertheless, plaintiff JEAN VADI was arrested and charged with, *inter alia*, two (2) counts of Criminal Possession of a Weapon in the Second Degree, Criminal Possession of a Weapon in the Fourth Degree, and Criminal Possession of a Firearm.

16. Plaintiff JEAN VADI at no point in time on August 25, 2014 *ever* possessed any weapon, much less a firearm.

17. There was no physical evidence connecting plaintiff JEAN VADI to any firearm.

18. There was no forensic evidence connecting plaintiff JEAN VADI to any firearm.

19. There was no DNA evidence connecting plaintiff JEAN VADI to any firearm.

20. In connection with plaintiff JEAN VADI'S unlawful arrest, defendant police officers provided false and misleading information to the District Attorney's office about the facts and circumstances supporting plaintiff JEAN VADI's arrest.

21. Further, defendants withheld from prosecutors material exculpatory information which would have resulted in the exoneration of plaintiff JEAN VADI.

22. Despite the seriousness of the charges levied against plaintiff JEAN VADI, the arraignment judge released plaintiff JEAN VADI on his own recognizance.

23. As a result of defendants' unlawful actions, plaintiff spent over two and a half (2 1/2) years defending himself against these baseless criminal charges.

24. On December 5, 2016, plaintiff JEAN VADI was acquitted on all charges by a jury of his peers.

AS AND FOR A FIRST CAUSE OF ACTION
(VIOLATION OF CIVIL RIGHTS PURSUANT TO 42 USC §1983)

25. Plaintiff JEAN VADI repeats and realleges each and every allegation set forth in paragraphs "1" through "24", as if more fully set forth at length herein.

26. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

27. All of the aforementioned acts deprived Plaintiff JEAN VADI of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and/or corrections officials, with all the actual and/or apparent authority attendant thereto.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

30. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

31. The acts complained of deprived plaintiff JEAN VADI of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from searches not based upon probable cause;
- D. To be free from unwarranted and malicious criminal prosecution;
- E. To receive equal protection under the law.
- F. To be free from excessive force.

32. As a result of the foregoing, Plaintiff JEAN VADI has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A SECOND CAUSE OF ACTION
(FALSE ARREST UNDER 42 U.S.C. §1983)

33. Plaintiff JEAN VADI repeats and realleges each and every allegation in paragraphs "1" through "32" of this Complaint as if the same were more fully set forth at length herein.

34. As a result of the aforesaid conduct by defendants, plaintiff JEAN VADI was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated by the defendants.

35. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights, privileges and/or immunities secured by the Constitution and laws of the United States of America.

36. As a result of the foregoing, Plaintiff JEAN VADI has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A THIRD CLAIM FOR RELIEF
(MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983)

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "36" with the same force and effect as if fully set forth herein.

38. Defendants misrepresented and falsified evidence before the District Attorney.

39. Defendants did not make a complete and full statement of facts to the District Attorney.

40. Defendants withheld exculpatory evidence from the District Attorney.
41. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff JEAN VADI.
42. Defendants lacked probable cause to initiate criminal proceedings against plaintiff JEAN VADI.
43. Defendants acted with malice in initiating criminal proceedings against plaintiff JEAN VADI.
44. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff JEAN VADI.
45. Defendants lacked probable cause to continue criminal proceedings against Plaintiff JEAN VADI.
46. Defendants acted with malice in continuing criminal proceedings against Plaintiff JEAN VADI.
47. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceeding.
48. As a result of the foregoing, Plaintiff JEAN VADI has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A FOURTH CLAIM FOR RELIEF
(DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983)

49. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "48" as if the same were more fully set forth at length herein.
50. Defendants created false evidence against plaintiff JEAN VADI.

51. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's Office.

52. In creating false evidence against plaintiff JEAN VADI, in forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

53. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

54. As a result of the foregoing, Plaintiff JEAN VADI has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A FIFTH CLAIM FOR RELIEF
(MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983)

55. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "54" with the same force and effect as if fully set forth herein.

56. The aforementioned individual defendants issued legal process to place plaintiff JEAN VADI under arrest.

57. The aforementioned individual defendants arrest plaintiff JEAN VADI in order to obtain a collateral objective outside the legitimate ends of the legal process.

58. The aforementioned individual defendants acted with intent to do harm to plaintiff JEAN VADI, without excuse or justification.

59. As a result of the foregoing, plaintiff JEAN VADI sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

60. As a result of the foregoing, Plaintiff JEAN VADI has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A SIXTH CAUSE OF ACTION
(MUNICIPAL LIABILITY UNDER 42 USC §1983)

61. Plaintiff JEAN VADI repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "60" as if the same were more fully set forth at length herein.

62. Defendants and P.O.'s "JOHN DOE" #1-10 arrested and incarcerated plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

63. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

64. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

65. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiffs.

66. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

67. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

68. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff JEAN VADI was falsely arrested and prosecuted for over two (2) years.

69. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff JEAN VADI.

70. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiffs' constitutional rights.

71. All of the foregoing acts by defendants deprived plaintiff JEAN VADI of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. Not to have cruel and unusual punishment imposed upon them; and
- E. To receive equal protection under the law.
- F. To be free from excessive force.

72. As a result of the foregoing, Plaintiff JEAN VADI has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

WHEREFORE, plaintiff JEAN VADI demands judgment against the defendants as follows:

- (1) On all causes of action, compensatory damages in the amount of \$10,000,000.00; and
- (2) On all causes of action, punitive damages in the amount of \$10,000,000.00.
- (3) Costs and disbursements of this action, including attorney's fees, and for such other and further relief as to this Court may deem just and proper.

Dated: New York, New York
June 22, 2017



JON L. NORINSBERG
Attorney for Plaintiff
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